Fort Bend County District Court

Cause No. 2025-CV-0025

Ryan Roberts, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	5-19-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Plaintiff's alleged injuries and damages were proximately caused, in whole or in part, by Plaintiff's own negligence, including failure to keep a proper lookout, failure to control speed, and failure to maintain a safe distance from the vehicle ahead. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may be barred from recovery if that percentage exceeds fifty percent.

Second, Defnedant invokes the proportionate responsibility provisions of Chapter 33, requesting that the trier of fact determine the percentage of responsibility of each claimant, defendant, settling person, and responsible third party, and that any judgment be limited accordingly.

Third, Defendant asserts that Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and treatment, and that any recovery for medical expenses must be limited to amounts actually paid or incurred by or on behalf of Plaintiff, as provided in Section 41.0105 of the Texas Civil Practice and Remedies Code.